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No. 1961/30 – THURSDAY, APRIL 07, 2016

(Published by Authority)

PART I: SECTION (I) – GENERAL

Government Notifications

My No.: IR/10/25/2012.

THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON (1956 REVISED EDITION)

Revocation of Order under Section 4(1)

WHEREAS by Order made under Section 4 (1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition) as amended by Act. Nos. 14 and 62 of 1957, 14 of 1962 and 39 of 1968 read with Industrial Disputes (Special Provisions) Act, No. 37 of 1968 dated 20.08.2015 and published in the *Gazette* of the Democratic Socialist Republic of Sri Lanka Extraordinary No. 1930/5 dated 31.08.2015 the Industrial Dispute in respect of the matter specified in the statement of the Commissioner of Labour dated 05.08.2015.

Mr. A. P. K. Weeraratne, Kudagama, Dombemada, of the one part,

and

National Water Supply and Drainage Board, Head Office, Galle Road, Ratmalana of the other part.

was referred to Mr. Palitha Weerasekara for settlement by arbitration.

AND whereas it is now deemed expedient that the said Order be revoked, I, W. D. J. Seneviratne, Minister of Labour and Trade Union Relations do hereby revoke the said Order and further make Order that no proceedings be taken upon the said Order dated 20.08.2015.

W. D. J. SENEVIRATNE,
Minister of Labour and Trade Union Relations.

Colombo,
05 th day of April, 2016.

04-872/1



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**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order under Section 4(1)

WHEREAS AN Industrial dispute in respect of the matter specified in the statement of the Commissioner of Labour which accompanies this order exists between -

Mr. A. P. K. Weeraratne, Kudagama, Dombemada of the one part

and

National Water Supply and Drainage Board, Head Office, Galle Road, Ratmalana, of the other part

NOW THEREFORE I, Welatantirige Don John Seneviratne, Minister of Labour and Trade Union Relations do by virtue of the powers vested in me by Section 4 (1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Act., Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes - Special Provisions) Act, No. 37 of 1968 hereby appoint. Mr. T. E. Santharajan, No. 181/ 1, A. P. T. 503, W. A. Silva Mawatha, Colombo 06 to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

W. D. J. SENEVIRATNE,
Minister of Labour and Trade Union Relations.

Colombo,
05th April, 2016.

My No.: IR/10/25/2012.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Mr. A. P. K. Weeraratne, Kudagama, Dombemada, of the one part.

and

National Water Supply and Drainage Board, Head Office, Galle Road, Ratmalana, of the other part.

STATEMENT OF MATTER IN DISPUTE

The matters in dispute between the aforesaid parties are.-

Whether Mr. A. P. K. Weeraratne who had served the National Water Supply and Drainage Board, as a Clerk has been caused unjust by.

1. Not receiving the promotions, salary increments or gratuity in accordance with the permanent appointment letter dated 29.08.2001 and casual (temporary) appointment letter dated 10.08.2000 as well as the recruitment and promotion procedures,
2. Being deprived of the salaries from 11.07.2007 to 10.11.2010 by letter of re-instatement dated 08.11.2010 and all the other entitlements for that period and

3. Issuing the order of vacation of post dated 08.10.2007 even though he had informed the Board of his sickness and forwarded medical certificates, and if so, to what reliefs he is entitled.

M. D. C. AMARATHUNGE,
Commissioner of Labour.

Dated at the Office of the Commissioner of Labour,
Colombo, this 18th day of February, 2016.

04-872/2

My No.: IR/COM/05/E/ 2014/100.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order under Section 4 (1)

WHEREAS AN Industrial dispute in respect of the matter specified in the statement of the Commissioner of Labour which accompanies this order exists between –

Free Trade Zones and General Services Employees Union, (on behalf of Mr. H. M. P. Silva), No. 141, Ananda Rajakaruna
Mawatha, Colombo 10, of the one part

and

Creasy Foods Limited, No. 98, Sri Sangaraja Mawatha, Colombo 10, of the other part.

NOW THEREFORE I, Welatantirige Don John Seneviratne, Minister of Labour and Trade Union Relations do by virtue of the powers vested in me by Section 4 (1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Act. Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes - Special Provisions) Act, No. 37 of 1968 hereby appoint. Mr. K. M. Sarathchandra, No. 160, Mapalangedara, Diwulapitiya to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

W. D. J. SENEVIRATNE,
Minister of Labour and Trade Union Relations.

Colombo,
5th April, 2016.

My No.: IR/COM/05/E/ 2014/100.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Free Trade Zones and General Services Employees Union, (on behalf of Mr. H. M. P. Silva), No. 141, Ananda Rajakaruna
Mawatha, Colombo, 10 of the one part

and

Creasy Foods Limited, No. 98, Sri Sangaraja Mawatha, Colombo 10, of the other part.

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I කොටස: (I) ඡේදය - ශ්‍රී ලංකා ප්‍රජාතාන්ත්‍රික සමාජවාදී ජනරජයේ අති විශේෂ ගැසට් පත්‍රය - 2016.04.07

PART I: SEC. (I) - GAZETTE EXTRAORDINARY OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA - 07.04.2016

STATEMENT OF MATTER IN DISPUTE

The matter in dispute between the aforesaid parties is.-

Whether the transfer of Mr. H. M. P. Silva employed at Creasy Foods Ltd to the Stores situated at No. 98, Sri Sangaraja Mawatha, Colombo 10 from 11.06.2014 is just, and if not so, to what reliefs he is entitled.

M. D. C. AMARATHUNGE,
Commissioner of Labour.

Dated at the Office of the Commissioner of Labour,
Colombo this 1st day of March, 2016.

04- 873

My No.: IR/13/17/2008.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Revocation of Order under Section 4 (1)

WHEREAS by Order made under Section 4 (1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition) as amended by Act. Nos. 14 and 62 of 1957, 14 of 1962 and 39 of 1968 read with Industrial Disputes (Special Provisions) Act, No. 37 of 1968 dated 15.01.2010 and published in the *Gazette* of the Democratic Socialist Republic of Sri Lanka Extraordinary No. 1637/16 dated 21.01.2010 the Industrial Dispute in respect of the matter specified in the statement of the Commissioner of Labour dated 10.12.2009.

Mr. A. W. Samarasuriya, "Samarasiri", Kottegoda, of the one part

and

Sri Lanka Transport Board, No. 200, Kirula Road, Colombo 05, of the other part

was referred to Mr. W. G. Deen for settlement by arbitration.

AND whereas it is now deemed expedient that the said Order be revoked, I, W. D. J. Seneviratne, Minister of Labour and Trade Union Relations do hereby revoke the said Order and further make Order that no proceedings be taken upon the said Order dated 15.01.2010.

W. D. J. SENEVIRATNE,
Minister of Labour and Trade Union Relations.

Colombo,
5th April, 2016.

04-874/1

My No.: IR/13/17/2008.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order under Section 4 (1)

WHEREAS AN Industrial dispute in respect of the matter specified in the statement of the Commissioner of Labour which accompanies this order exists between –

Mr. A. W. Samarasuriya, "Samarasiri", Kottegoda, of the one part

and

Sri Lanka Transport Board, No. 200, Kirula Road, Colombo 05, of the other part.

NOW THEREFORE I, Welatantirige Don John Seneviratne, Minister of Labour and Trade Union Relations do by virtue of the powers vested in me by section 4 (1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Act. Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes - Special Provisions) Act, No. 37 of 1968 hereby appoint. Mr. S. Virithamulla, No. 128, Piriwena Road, Boralesgamuwa to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

W. D. J. SENEVIRATNE,
Minister of Labour and Trade Union Relations.

Colombo,
5th April, 2016.

My No.: IR/13/17/2008.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Mr. A. W. Samarasuriya, "Samarasiri", Kottegoda, of the one part

and

Sri Lanka Transport Board, No. 200, Kirula Road, Colombo 05, of the other part.

STATEMENT OF MATTER IN DISPUTE

The matter in dispute between the aforesaid parties is.-

Whether the penalties imposed by the Sri Lanka Transport Board on Mr. A. W. Samarasuriya, Grade IIIB Officer of the Ruhunu Region in terms of the appeal order dated 05.09.2007 of the Board's Sub- Committee are justified and if not justified, to what reliefs he is entitled.

M. D. C. AMARATHUNGE,
Commissioner of Labour.

Dated at the Office of the Commissioner of Labour,
Colombo, this 12th day of February, 2016.

04- 874/2

My No.: IR/COM/04/S/ 2014/79.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order under Section 4 (1)

WHEREAS AN Industrial dispute in respect of the matters specified in the statement of the Commissioner of Labour which accompanies this order exists between –

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I කොටස: (I) ඡේදය - ශ්‍රී ලංකා ප්‍රජාතාන්ත්‍රික සමාජවාදී ජනරජයේ අති විශේෂ ගැසට් පත්‍රය - 2016.04.07

PART I: SEC. (I) - GAZETTE EXTRAORDINARY OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA - 07.04.2016

Mr. R. J. M. P. G. Y. B. Jayasekara, National Water Supply and Drainage Board, Divisional Assistance Service Centre (East), Trincomalee, of the one part

and

National Water Supply and Drainage Board, P. O. Box 14, Galle Road, Ratmalana, of the other part.

NOW THEREFORE I, Welatantirige Don John Seneviratne, Minister of Labour and Trade Union Relations do by virtue of the powers vested in me by Section 4 (1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Act. Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes - Special Provisions) Act, No. 37 of 1968 hereby appoint, Mr. Suneth Lokubogahawatta, No. 89/ F, Kumudu Mawatha, Nampamunuwa, Piliyandala to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

W. D. J. SENEVIRATNE,
Minister of Labour and Trade Union Relations.

Colombo,
5th April, 2016.

My No.: IR/COM/04/S/ 2014/79.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Mr. R. J. M. P. G. Y. B. Jayasekara, National Water Supply and Drainage Board, Divisional Assistance Service Centre (East), Trincomalee, of the one part

and

National Water Supply and Drainage Board, P. O. Box 14, Galle Road, Ratmalana, of the other part .

STATEMENT OF MATTERS IN DISPUTE

The matters in dispute between the aforesaid parties are:-

Whether the claims made by Mr. R. J. M. P. G. Y. B. Jayasekara working as a Meter Reader of the National Water Supply and Drainage Board,

(i) to be given the post of Training Officer from 07.04.2008

and

(ii) to be paid an acting allowance for covering work done in the post of Training Officer from 07.04.2008 to 05.06.2014 are justified, and if so, to what reliefs he is entitled.

M. D. C. AMARATHUNGE,
Commissioner of Labour.

Dated at the Office of the Commissioner of Labour,
Colombo, this 18th day of February, 2016.

04- 875